

24SMCV06059 24SMCV06059

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-03

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CP%2C09%2F03%2F2026

Source SHA-256: 15e1d5e83244d63c39ba7b21d052d29e207465dd2cae141cc0fd8b9d68210819

Case Number: 24SMCV06059 Hearing Date: September 3, 2026 Dept: P

Tentative

Ruling

Shahid

Sheikh, et al. v. Assil Gaur Eye Institute, et al., Case No. 24SMCV06059

Plaintiff's

Motion for Leave to Amend to File Second Amended Complaint

Hearing

Date: September 3, 2026

Background

Plaintiffs

Shahid Sheikh (individually "Sheikh") and his wife Gabriele Gasafy (collectively "Plaintiffs") sue Defendants Assil Gaur Eye Institute and Dr. Kerry Assil for medical negligence, lack of informed consent, and loss of consortium arising from cataract surgery. The Sheikhs allege that Sheikh agreed to have Dr. Assil place a specific type of intraocular lens in his eye, but that Dr. Assil placed a different intraocular lens during surgery, leaving Sheikh nearsighted in his right eye and causing visual distortion. (Complaint, ¶¶ 17-19.)

On

December 12, 2024, Plaintiffs filed the complaint.

On January

21, 2025, Defendants answered.

On May 7,
2026, Defendants filed a motion for summary judgment.

On July 8,
2026, the Court granted Plaintiffs' Motion for Leave to file a First Amended
Complaint and continued trial and all associated discovery dates to March 7,
2027.

On August
6, 2026, Plaintiffs filed a Motion for Leave to file a Second Amended
Complaint. On August 24, 2026, Defendants filed opposition. On August 25, 2026,
Plaintiffs replied.

Arguments

Plaintiffs

request leave to amend to add a sixth cause of action for medical battery.
Plaintiffs contend that the medical battery claim rests on the same facts
alleged in the initial pleading, that Plaintiff authorized a different type of
intraocular lens than the one that was ultimately implanted in his eye. (Motion
for Leave to Amend, pp. 3-4.) Plaintiffs argue that justice favors hearing all
claims arising from the same incident together and that leave to amend will not
prejudice Defendants because trial is not until March 1, 2027. (Id. at pp.
7-8.)

Defendants

argue that Plaintiffs have not shown diligence or new facts justifying another
amended pleading because the proposed claim for medical battery rests on the
same facts as Plaintiffs' claim for medical negligence and Plaintiffs have
failed to explain why they did not raise the claim earlier. (Opposition, p. 4.)
Defendants also argue that granting this motion would prejudice them because granting
Plaintiffs' motion will require defendants to re-assess the pleading, revise or
refile their pending demurrer and motion to strike, and continue without a
settled pleading. (Id. at p. 5.) Finally, Defendants argue that the proposed
claim is legally defective. (Id. at p. 6.)

In reply,

Plaintiffs argue that the law strongly favors leave to amend and does not
require newly discovered facts and is expressly permitted if the proposed claim

is based on facts already plead and not prejudicial. (Reply, p. 3.) Plaintiffs argue that the fact that a new amended complaint will supersede Defendants' demurrer is not the type of prejudice that would justify denying leave to amend. (Id. at p. 4.)

Motion
for Leave to Amend

The trial court has discretion to allow amendments to pleadings in the furtherance of justice. (Code Civ. Proc. § 473, subd. (a)(1).) "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading." (Code Civ. Proc. § 576.) "There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding." (Berman v. Bromberg (1997) 56 Cal.App.4th 936, 945 [citations omitted].) "An application to amend a pleading is addressed to the trial judge's sound discretion." (Ibid. [citations omitted].) A judge may deny a motion for leave to amend where a moving party has been dilatory in seeking leave to amend and such delay has prejudiced the opposing party. (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 490 ("Hirsa").) "It is difficult to understand how [a named defendant] can be prejudiced by amendment to add an additional theory of liability against it." (Ibid.)

"[I]t is an abuse of discretion to deny leave to amend where the opposing party [is] not misled or prejudiced by the amendment." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 ("Kittredge").) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation. (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448 ("Solit").)

A motion for leave to amend must include a separate declaration specifying: "(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (Cal. Rules of Court, Rule 3.1324(b).) A motion for leave to amend must "[i]nclude a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments." (Cal. Rules of Court,

Rule 3.1324(a)(1).) Moreover, a motion to amend must “[s]tate what allegations in the previous pleading are proposed” to be deleted or added, if any, and must set forth the page, paragraph, and line number of such allegations. (Cal. Rules of Court, Rule 3.1324(a)(2)-(3).)

Analysis

Plaintiffs

submit a declaration and the proposed amended answer, satisfying the requirements of rule 3.1324. Defendants contend that Plaintiffs do not properly explain why leave to amend was not sought earlier. Plaintiffs’ declaration in support of their Motion for Leave to Amend does not explain in detail why leave to amend was not sought earlier. Overall, however, the declaration is sufficient to satisfy the requirements of Rule 3.1324 in light of the liberal amendment standard. However, Plaintiffs’ explanation in their memorandum of points and authorities that they brought this motion because, after further assessment of the available discovery, they believe that they will be able to state a claim for medical battery, is weak. There is no substantial explanation for why Plaintiffs did not seek leave to add this medical battery claim last month, when they sought leave to amend to business-related claims. (See Motion for Leave to Amend, p. 9.)

An

amendment adding a new claim based on facts already alleged is allowed: “Even an amendment which gives rise to a separate cause of action is permitted if recovery is being sought ‘on the same general set of facts,’ and the amendment is not prejudicial to the party against whom it is offered.” (Glaser v. Meyers (1982) 127 Cal.App.3d 770, 777, internal quotations omitted.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation. (Solit, supra, 68 Cal.App.4th at 1448.) Here, recovery is based on the exact same facts alleged in the additional complaint, but the proposed amendment would prejudice Defendants. When the Court granted Plaintiffs leave to amend a month ago, it did so despite Defendants’ pending motion for summary judgment, and continued trial to give the parties time to litigate the new claims. Now, Plaintiffs move for leave to amend again without new facts, while Defendants have a pending demurrer on the claims Plaintiffs added last month. The cost of re-writing and re-filing Defendants’ pending motions is significant prejudice. Additionally, Plaintiff’s argument as to why it did not add its proposed claim for medical battery last month does not justify the prejudice caused by

granting the instant motion.

The prior

decision to allow Plaintiff leave to amend – even though leave to amend mooted the pending MSJ and necessitated a trial continuance – was a close call. Ultimately, the Court afforded Plaintiff leave to amend and continued trial over Defendants' strenuous objections. That was Plaintiff's opportunity to bring new claims. The court will not prejudice Defendants again.

Conclusion

Plaintiff's

Motion for Leave to Amend is DENIED.